

regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted *Pro Hac Vice*. Again, no timely opposition was filed with the Court.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders. The Court finds good cause to admit Mr. Morgan pro hac vice to practice before the Courts of the State of California for this action.

Ruling

Defendant's motion is **granted**. Robert Keith Morgan, Esq, is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case. The Court will execute the proposed order lodged with the Court on November 17, 2025, with a copy of this ruling attached thereto. No appearance is required on May 13, 2026.

16. 9:00 AM CASE NUMBER: MSC21-02445

CASE NAME: NIST VS FARRELL

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: CLIFFORD R. HORNER, ESQ.**

FILED BY: FARRELL, SHANNA M.

TENTATIVE RULING:

Summary

Attorneys Clifford Horner and Paymon Hifai of the Horner Law Group ("HLG") Motion to be Relieved as Counsel of Record for Defendant and Cross-Complainant Shanna Farrell is tentatively **granted**. Messrs. Horner or Paymon and Defendant and Cross-Complainant Shanna Farrell ("Farrell") are ordered to appear at the hearing on May 13, 2026.

Background

As background, the Plaintiffs filed this property dispute action on November 24, 2021 against their neighbors in rural multiple acre ranch in Clayton, California, alleging various causes of action. To date, there are nearly 400 pleadings and documents on file in this case, including multiple demurrers, motions to strike, discovery motions, *ex parte* applications, motions for reconsideration, a motion to declare Farrell as a vexatious litigant, a motion to expunge *lis pendens*, motions for sanctions, a motion to vacate a default judgment, an earlier motion of Farrell's prior counsel to withdraw as counsel of record, and a motion for preliminary injunction. The operative pleading is the Fourth Amended Complaint. In this Court's assessment, to describe this case as one that has been vigorously litigated is a substantial understatement.

Trial is set for September 14, 2026. The case is approaching critical pretrial deadlines, including the Issue Conference set for August 6, 2026, and related statutory and discovery deadlines leading into trial. The five year statute expires on November 24, 2026, after which this Court loses jurisdiction over this case and must dismiss this action pursuant to Cal. Code of Civ. Proc §§ 583.310 and 583.360. There are no stipulations to continue the trial date, no tolling agreements and no statutory cause to extend this five year restriction.

On March 31, 2026, after receiving notice of the Motion to Withdraw, counsel for the Nist Plaintiffs ("Plaintiffs") responded and stated that he will not oppose this application or HLG's underlying Motion, and counsel for Cross-Defendant Primo Facchini stated he does not intend to oppose this *ex-parte* application or HLG's Motion to Withdraw. However, Plaintiffs, upon review of Shanna Farrell's opposition, filed a Reply Brief essentially arguing that dismissal is warranted due to a financial conflict of interest between HLG and Ms. Farrell.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

According to HLG this Motion to Be Relieved as Counsel is made for several reasons: 1) The attorney-client relationship that HLG has with Shanna M. Farrell, Defendant and Cross-Complainant("Client") as well as the trust and confidence between both has fractured beyond repair, amounting to HLG's inability to effectively litigate this case and is a basis for the termination of the attorney-client relationship; 2) The breakdown of the attorney-client relationship now exists which is a ground for allowing attorney to withdraw. *Estate of Falco v. Decker*, 188 CA3d 1004, 1014 (1987). Counsel claims that they can no longer represent client due to irreconcilable differences regarding litigation of this case and breach of retention agreement.

However, both Shanna Farrell and the Nist Plaintiffs filed opposition and reply briefs that paint a critically different and separate legal basis for disqualification.

Farrell characterizes the conflict between her and HLG as a fee dispute that was initiated when she invoked mandatory fee arbitration. In her opposition papers, Farrell argues that HLG should not be permitted to withdraw, as she will lose the ability to maintain a fiduciary duty with counsel regarding her property interests. Interestingly, Farrell also revealed that HLG has maintained what appears to be an attorney fee lien of approximately \$1.2 million on her property, which is the subject of this litigation. To grant HLG's motion at this time would severely prejudice her and would essentially make HLG a secured creditor over the property in dispute. Farrell does not quite understand the import of her disclosure.

But, Plaintiffs focused the attention of the Court on the most critical issue. Plaintiff's opposition claim that the underlying claim core issue is not whether HLG and Defendant can communicate or whether a fee dispute exists. Rather, Plaintiffs claim that that HLG has already become an adverse party to Farrell by virtue of HLG's possession and control of property obtained through representation, HLG's assertion of fees equal to the property's appraised value, and HLG's withholding of that property as leverage in a fee dispute.

Plaintiffs argue that under California law, an attorney cannot simultaneously represent a client and maintain an adverse financial interest in property obtained through that representation. This conflict

is structural, ongoing, and cannot be cured through fee arbitration or continued representation under conditions. As represented in Farrell's facts, HLG holds a deed to the Clayton property obtained through representation of Defendant; has asserted fees of approximately \$1.2 million-an amount equal to the property's appraised value; has tied fee demands to anticipated sale proceeds; and has withheld the deed as leverage in the fee dispute. Assuming these facts are true, they do not demonstrate a communication breakdown but, rather, an irreconcilable conflict of interest under California Rules of Professional Conduct Rule 1.7. As such, HLG's motion to be relieved as counsel must be granted as HLG recognizes their duty to withdraw and as officers of the court have moved to do so. Plaintiffs argue that if this Court denies the motion, Plaintiffs will be compelled to move for disqualification of HLG based on this irreconcilable conflict of interest as to not allow HLG to be relieved would be highly prejudicial to Plaintiffs' interests.

Based on the foregoing arguments, and after reviewing statutory and decisional authorities cited by the parties, along with the Rules of Professional Responsibility, the Court finds that there is good cause to grant this Motion to relieve HLG as counsel for Farrell. The Court acknowledges that the prejudice to Plaintiff is moderate, as there is ample time for Plaintiff to retain trial counsel, or, in the alternative, to represent himself.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of HLG to be Relieved as Counsel of Record for Farrell. The makes the following orders:

1. HLG's motion is tentatively **granted**.
2. Farrell and HLG is ordered to appear.

17. 9:00 AM CASE NUMBER: N25-1365

CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS OR, IN THE ALTERNATIVE, MOTION TO DISMISS**

FILED BY: CITY OF SAN RAMON

TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings, or in the alternative, motion to dismiss filed by respondent City of San Ramon. For the reasons set forth, the motion is **granted in part** as to the first and second causes of action of the first amended petition and **denied** as to the third cause of action.

Background

Petitioner Brian Swanson, AIPC, asserts challenges to certain actions by City of San Ramon based on alleged violations of the California Environmental Quality Act, Public Resources Code § 21000, *et seq.* ("CEQA") and the CEQA Guidelines. The actions he challenges were the subject of a Notice of